



BLOG



Ask an Employment Law Attorney: Can My Employer Legally Monitor My Correspondence While at Work?

by PLBH | Jan 1, 2023

Technology makes it possible to communicate more effectively, but it also records every private conversation you have online. You have the right, in the majority of cases, to anticipate that your email and private chats will stay private while dealing with personal matters.



Electronic communication in the workplace is a different matter. It's unpleasant to consider that many businesses use specific tracking devices to read employee communications. The majority of businesses still reserve the right to monitor personal work messages, though. Read on to learn more and then contact PLBH at (866) 839-6598 if you require a consultation with an employment law attorney.



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When Slack, a tool for (866) 839-6598 released a new upgrade in April 2018 that allowed employers to monitor employee messages, it garnered media attention. For employees to facilitate communication and collaborate on numerous ideas, Slack functions as a network of chat rooms. However, the platform has developed into a more social tool, and many workers have started using it for intra-office interactions.

Since 2014, employers have had access to read Slack messages. Employers could see a history of previous messages, but they had to download a "Compliance Export" to do so. Users of Slack were informed when an employer requested an export.

Their revised policy, however, modifies this procedure. Slack stopped offering Compliance Exports and added the following new downloading options:

- **Owners of businesses may download all public data**
- **Employers using the Plus subscription are able to retrieve all content from Slack communications at work, including direct messages and secret channels**
- **No longer will employees be informed when their employer places an export order**

Users of Slack have questioned this practice's morality. Due to the platform's distinctive layout and format, which are similar to social media, many employees assume that their messages are private. Employees shouldn't, however, believe that whatever technology they use for work purposes is private.

Is there workplace electronic privacy?

Employers have the right to check your communications, whether you use Slack, work email, or a business phone, as long as there is a legitimate business need to do so. Employees are typically informed about this action by their employers either during training or in a policy handbook. A corporation nonetheless has the legal authority to examine messages sent through work accounts even in the absence of a written policy.

Some companies, however, opt not to watch these communications. They will inform their staff members that their emails are private. Additionally, companies are prohibited from monitoring communications for illicit objectives, such as identifying workers who may be planning a strike.

The law becomes more complicated when personal messages are being seen on a work computer. Your employer may, with your express authorization, monitor your emails sent from a work computer while you are using a personal email account. Usually, a policy



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will track all computer use is used to acquire

Employers frequently buy and supply accounts for their employees in the case of platforms like Slack. Slack is therefore recognized by law as a type of workplace technology, and employers are therefore permitted to monitor it.

Tips for communication safety in the workplace

You might be concerned about how private your communications on work accounts and electronic devices really are. Your employers are legally permitted to keep an eye on what you do online. You can take steps to prevent problems with office technology, though. First, Always presume that your messages will be read by someone else. Never communicate anything to a coworker that a reader outside the company could find objectionable.

Send no communications that would make you uncomfortable to read if someone else received them. Keep all conversations on work-related topics on accounts and devices. Use only work accounts on workplace computers.

Use cautious at all times when chatting at work. Keeping your communications professional will help you maintain a positive reputation at work, both online and off. However, you should consult a [wrongful termination lawyer](#) to see if you have a case if you think your employer violated your privacy and fired you as a result.



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